

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

BRANDON PARKER, Plaintiff, -against- THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN" GOLDRICK, TAX REG. NO.: 963347 AND OTHER UNNAMED POLICE OFFICERS, Defendant.	 <u>VERIFIED COMPLAINT</u> Index No.: 23705/2020E
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BRANDON PARKER, by his attorney, Elliot H. Fuld, complains of the
Defendants and alleges, upon information and belief as follows:

1. BRANDON PARKER was, at all times of the incident described in this complaint, a resident of the City and State of New York, residing at 2971 Eighth Avenue, Apt. 13G, New York, NY 10039.
2. THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN" GOLDRICK, TAX REG. NO.: 963347 and police officers whose names are yet unknown were and at all times herein and upon information and belief, are police officers with the New York City Police Department with regards to the incidents described herein.
3. NEW YORK CITY POLICE OFFICER "JOHN" GOLDRICK", TAX REG. NO.: 963347 and other unnamed police officers were acting within the scope of their employment with the New York City Police Department with regards to the incidents described herein.

4. That at all times stated herein, NEW YORK CITY POLICE OFFICER "JOHN" GOLDRICK, TAX REG. NO.: 963347 and other unnamed police officers, as employees of the New York City Police Department, were acting as agents, servants and/or employees of the City of New York.
5. THE CITY OF NEW YORK, at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

AND AS FOR A FIRST CAUSE OF ACTION

6. On or about February 2, 2019, NEW YORK CITY POLICE OFFICER "JOHN" GOLDRICK, TAX REG. NO.: 963347 and other unnamed police officers forcibly seized and detained Plaintiff herein, who was acting and proceeding in a lawful manner, in the area of Olmstead and Unionport Avenues in Bronx County.
7. The police officers threw Plaintiff against a wall and assaulted him severely, causing contusions and abrasions to his body and causing him to suffer injuries requiring hospital intervention.
8. Plaintiff was then handcuffed and taken the 43rd Precinct where he was incarcerated.

9. Plaintiff was released from custody after being held for in excess of nine (9) hours.
10. Plaintiff was issued a violation and charged with disorderly conduct for “failure to disperse”, which summons was returnable in Bronx Criminal Court on April 10, 2019.
11. On April 10, 2019, Plaintiff appeared in Bronx Criminal Court to answer on those charges and all criminal charges against the Plaintiff were dismissed.
12. At the time of the initial stop, search and detention, and through the time of Plaintiff’s release, the police were aware, or should have been aware, that there was no basis to stop, search or detain Plaintiff.
13. Beginning with original incident and continuing to the present, the Police have persistently targeted Plaintiff and many similarly situated persons by relying upon the excuse of “failure to disperse” as an excuse to harass and discriminate against minorities, Hispanics and African Americans.
14. The aforementioned stop of Plaintiff by those officers was without reasonable suspicion and without any basis in law or in fact.
15. The arrest, seizure, detention and imprisonment of Plaintiff were without probable cause and without basis in law or in fact.

16. On or about April 4, 2019, Plaintiff, by counsel, served upon the Comptroller of the City of New York, Notice of Claim as required by the General Municipal Law.

17. Plaintiff has not yet been examined pursuant to section 50-h of the General Municipal Law and is willing to subject to such questioning but because of the “state of emergency” imposed due to the coronavirus outbreak from Covid-19, said examination might be delayed past the statute of limitations expiration in this case.

18. That more than thirty (30) days have elapsed since the service of each Claim and the adjustment or payment thereof has been neglected or refused.

19. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the stop, search and detention of February 2, 2019.

20. As a result of the false arrests of Plaintiff by Defendants, Plaintiff demands judgment against the Defendants and was damaged in the amount of Five Hundred Thousand (\$500,000) Dollars.

AND AS FOR A SECOND CAUSE OF ACTION

21. Plaintiffs repeat all the allegations contained in paragraphs “1” through “20” inclusive as though more fully set forth herein.

22. As a result of Defendants' actions, Plaintiff was falsely imprisoned.

23. That at the times of Plaintiff's imprisonment, Defendants, their agents, servants and/or employees knew or should have known that Plaintiffs should not have been incarcerated.

24. That the Defendants, their agents, servants and/or employees failed, refused or neglected to undertake any measures which could have resulted in Plaintiff's release.

25. That as a result of Defendants' action, Plaintiffs was compelled to, inter alia, suffer embarrassment, humiliation, fear and paranoia.

26. In view of the foregoing, Plaintiff has been damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

AND AS FOR A THIRD CAUSE OF ACTION

27. Plaintiffs repeat all the allegations contained in paragraphs "1" through "26" inclusive as though more fully set forth herein.

28. After Plaintiff's false arrest on February 2, 2019, and the malicious prosecution which followed, Plaintiff was required to make appearances in Criminal Court.

29. That during the pendency of those charges, and while most of the charges are currently pending, Defendants were, and are, well aware that it did not appear that Plaintiffs had committed any crime.

30. Plaintiff has refused to plead guilty.

31. The Defendants' prosecution of Plaintiffs has been, and continues to be, conducted with malice or with such reckless disregard for the true set of facts underlying the "complaint" that said reckless disregard constitutes malice.

32. In view of the foregoing, Plaintiffs has been damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

AND AS FOR A FOURTH CAUSE OF ACTION

33. Plaintiff repeats all the allegations contained in paragraphs "1" through "32" inclusive as though more fully set forth herein.

34. The Defendants, their agents, servants and/or employees, were acting "under color of state law" as defined in 42 U.S.C. 1983 et seq. in committing the acts alleged herein.

35. In performing that acts as aforesaid, the Defendants deprived Plaintiff of his civil and constitutional rights as defined by 42 U.S.C. 1983 et seq. and the law interpreting said section.

36. Plaintiff was targeted and his civil rights were violated on a regular basis when officers subjected Plaintiff to searches and seizures on a monthly, and at times weekly, basis.

37. Specifically, Defendants' violated Plaintiff's rights, subjecting him to stop, search and arrest on February 2, 2019.

38. Upon information and belief and from news sources, the New York City Police regularly engage in stop and frisks of minorities and other persons similarly situated as Plaintiff.

39. Defendants' actions were part and parcel of a continuing and ongoing course of conduct as well as a concerted plan and scheme to randomly stop, detain and search minorities for no other reason than their ethnic makeup.

40. Upon information and belief, Defendants' actions were not only motivated by their plan to discriminate against Plaintiff and other minorities who were similarly situated, but also by an unwritten police department quota system which requires officers to issue a certain number of summonses on a regular basis as a revenue raising tactic.

41. As a result of the foregoing, the Plaintiff has been damaged in the amount of Five Hundred Thousand (\$500,000) Dollars.

Wherefore, Plaintiff demands of the Defendants as follows:

- a. On the First Cause of Action, the sum of \$500,000; and
- b. On the Second Cause of Action, the sum of \$500,000; and
- c. On the Third Cause of Action, the sum of \$500,000; and
- d. On the Fourth Cause of Action, the sum of \$500,000; and
- e. Punitive Damages in the sum of \$1,000,000.

Dated: March 17, 2020

Elliot H. Fuld

Law Offices of Elliot H. Fuld
Attorneys for Plaintiff
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ELLIOT H. FULD an attorney admitted to practice law in New York State states that the foregoing allegations are upon information and belief true as derived from documents in our file and from Plaintiff and that I make this verification because Plaintiff does not reside in the county in which I maintain my office.

Dated: March 17, 2020

ELLIOT H. FULD

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